

OFFICE OF THE SECRETARY

P.O.Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Leslie A. Swain
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Rivas, Jose A.
CDC No.: AG6385
Case No.: BA354035-02
Date of Sentence: February 18, 2011

Dear Honorable Leslie A. Swain:

The purpose of this letter is to provide the court with authority to resentence Jose A. Rivas pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Rivas was sentenced in 2011, and was convicted of section 245, subdivision (a)(1), Assault with A Deadly Weapon. The trial court sentenced inmate Rivas on February 18, 2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Rivas's section 245 offense.(See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Rivas's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Amended Felony Information

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM
[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

AG-6385
AG-6385
HDP
CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES			
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JOSE A. RIVAS		DOB: 09-22-90	CASE NUMBER BA354035-02
AKA: CII NO.: A28215853 BOOKING NO.: 1835667		☐ NOT PRESENT	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☒ AMENDED ABSTRACT	
DATE OF HEARING 02-18-11	DEPT. NO. 131	JUDGE LESLIE A. SWAIN	
CLERK DAVID YAGUCHI	REPORTER MARY DAVIS	PROBATION NO. OR PROBATION OFFICER X- 2025377 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE SHEN - JAY FERN		COUNSEL FOR DEFENDANT WILLIAMS MCKINNEY ☐ APPTD.	

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY JURY COURT PLEA	TERM (L, M, U)	TIME IMPOSED YRS. MOS.
02	PC	245(A)(1)	ASSAULT WITH A DEADLY WEAPON	2009	11-03-10	X	U	4

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
02	12022.7(A) PC	3	186.22(B)(C)(1)PC	10			13

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$ 200.00 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☐ \$ _____ / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Security Fee of \$ 40.00 per PC 1465.8. ☒ Criminal Conviction Assessment of \$ 30.00 per GC 70373.

6. TESTING: a. ☐ Compliance with PC 256 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify): _____

7. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin HISPANIC

8. Other orders (specify):

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: **17**

10. ☐ This sentence is to run concurrent with (specify):

11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED 02-18-11	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS: 815	ACTUAL LOCAL TIME 709	LOCAL CONDUCT CREDITS 106	☐ 4019 ☐ 2933.1	TIME SERVED IN STATE INSTITUTION:	DMH	CDCR	CRC
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13. The defendant is remanded to the custody of the sheriff ☐ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation
☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE YANA J. WILLIAMS	DATE 08-19-11
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This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be filed with the court.

